

Anticipations

The first questions asked when states go to war are also the easiest to answer: who started the shooting? who sent troops across the border? These are questions of fact, not of judgment, and if the answers are disputed, it is only because of the lies that governments tell. The lies don't, in any case, detain us long; the truth comes out soon enough. Governments lie so as to absolve themselves from the charge of aggression. But it is not on the answers to questions such as these that our final judgments about aggression depend. There are further arguments to make, justifications to offer, lies to tell, before the moral issue is directly confronted. For aggression often begins without shots being fired or borders crossed.

Both individuals and states can rightfully defend themselves against violence that is imminent but not actual; they can fire the first shots if they know themselves about to be attacked. This is a right recognized in domestic law and also in the legalist paradigm for international society. In most legal accounts, however, it is severely restricted. Indeed, once one has stated the restrictions, it is no longer clear whether the right has any substance at all. Thus the argument of Secretary of State Daniel Webster in the *Caroline* case of 1842 (the details of which need not concern us here): in order to justify pre-emptive violence, Webster wrote, there must be shown "a necessity of self-defense . . . instant, overwhelming, leaving no choice of means, and no moment for deliberation."¹ That would permit us to do little more than respond to an attack *once we had seen it coming* but before we had felt its impact. Pre-

Anticipations

emption on this view is like a reflex action, a throwing up of one's arms at the very last minute. But it hardly requires much of a "showing" to justify a movement of that sort. Even the most presumptuous aggressor is not likely to insist, as a matter of right, that his victims stand still until he lands the first blow. Webster's formula seems to be the favored one among students of international law, but I don't believe that it addresses itself usefully to the experience of imminent war. There is often plenty of time for deliberation, agonizing hours, days, even weeks of deliberation, when one doubts that war can be avoided and wonders whether or not to strike first. The debate is couched, I suppose, in strategic more than in moral terms. But the decision is judged morally, and the expectation of that judgment, of the effects it will have in allied and neutral states and among one's own people, is itself a strategic factor. So it is important to get the terms of the judgment right, and that requires some revision of the legalist paradigm. For the paradigm is more restrictive than the judgments we actually make. We are disposed to sympathize with potential victims even before they confront an instant and overwhelming necessity.

Imagine a spectrum of anticipation: at one end is Webster's reflex, necessary and determined; at the other end is preventive war, an attack that responds to a distant danger, a matter of foresight and free choice. I want to begin at the far end of the spectrum, where danger is a matter of judgment and political decision is unconstrained, and then edge my way along to the point where we currently draw the line between justified and unjustified attacks. What is involved at that point is something very different from Webster's reflex; it is still possible to make choices, to begin the fighting or to arm oneself and wait. Hence the decision to begin at least resembles the decision to fight a preventive war, and it is important to distinguish the criteria by which it is defended from those that were once thought to justify prevention. Why not draw the line at the far end of the spectrum? The reasons are central to an understanding of the position we now hold.

Preventive War and the Balance of Power

Preventive war presupposes some standard against which danger is to be measured. That standard does not exist, as it were, on the ground; it has nothing to do with the immediate security of boundaries. It exists in the mind's eye, in the idea of a balance of power, probably the dominant idea in international politics from the seventeenth century to the present day. A preventive war is a war fought to maintain the balance, to stop what is thought to be an even distribution of power from shifting into a relation of dominance and inferiority. The balance is often talked about as if it were the key to peace among states. But it cannot be that, else it would not need to be defended so often by force of arms. "The balance of power, the pride of modern policy . . . invented to preserve the general peace as well as the freedom of Europe," wrote Edmund Burke in 1760, "has only preserved its liberty. It has been the original of innumerable and fruitless wars."² In fact, of course, the wars to which Burke is referring are easily numbered. Whether or not they were fruitless depends upon how one views the connection between preventive war and the preservation of liberty. Eighteenth century British statesmen and their intellectual supporters obviously thought the connection very close. A radically unbalanced system, they recognized, would more likely make for peace, but they were "alarmed by the danger of universal monarchy."* When they went to war on behalf of the balance, they thought they were defending, not national interest alone, but an international order that made liberty possible throughout Europe.

That is the classic argument for prevention. It requires of the

* The line is from David Hume's essay "Of the Balance of Power," where Hume describes three British wars on behalf of the balance as having been "begun with justice, and even, perhaps, from necessity." I would have considered his argument at length had I found it possible to place it within his philosophy. But in his *Enquiry Concerning the Principles of Morals* (Section III, Part I), Hume writes: "The rage and violence of public war: what is it but a suspension of justice among the warring parties, who perceive that this virtue is now no longer of any use or advantage to them?" Nor is it possible, according to Hume, that this suspension itself be just or unjust; it is entirely a matter of necessity, as in the (Hobbist) state of nature where individuals "consult the dictates of self-preservation alone." That standards of justice exist alongside the pressures of necessity is a discovery of the *Essays*. This is another example, perhaps, of the impossibility of carrying over certain philosophical positions into ordinary moral discourse. In any case, the three wars Hume discusses were none of them necessary to the preservation of Britain. He may have thought them just because he thought the balance generally useful.

Anticipations

rulers of states, as Francis Bacon had argued a century earlier, that they “keep due sentinel, that none of their neighbors do overgrow so (by increase of territory, by embracing of trade, by approaches, or the like) as they become more able to annoy them, than they were.”⁸ And if their neighbors do “overgrow,” then they must be fought, sooner rather than later, and without waiting for the first blow. “Neither is the opinion of some of the Schoolmen to be received: that a war cannot justly be made, but upon a precedent injury or provocation. For there is no question, but a just fear of an imminent danger, though no blow be given, is a lawful cause of war.” Imminence here is not a matter of hours or days. The sentinels stare into temporal as well as geographic distance as they watch the growth of their neighbor’s power. They will fear that growth as soon as it tips or seems likely to tip the balance. War is justified (as in Hobbes’ philosophy) by fear alone and not by anything other states actually do or any signs they give of their malign intentions. Prudent rulers assume malign intentions.

The argument is utilitarian in form; it can be summed up in two propositions: (1) that the balance of power actually does preserve the liberties of Europe (perhaps also the happiness of Europeans) and is therefore worth defending even at some cost, and (2) that to fight early, before the balance tips in any decisive way, greatly reduces the cost of the defense, while waiting doesn’t mean avoiding war (unless one also gives up liberty) but only fighting on a larger scale and at worse odds. The argument is plausible enough, but it is possible to imagine a second-level utilitarian response: (3) that the acceptance of propositions (1) and (2) is dangerous (not useful) and certain to lead to “innumerable and fruitless wars” whenever shifts in power relations occur; but increments and losses of power are a constant feature of international politics, and perfect equilibrium, like perfect security, is a utopian dream; therefore it is best to fall back upon the legalist paradigm or some similar rule and wait until the overgrowth of power is put to some overbearing use. This is also plausible enough, but it is important to stress that the position to which we are asked to fall back is not a prepared position, that is, it does not itself rest on any utilitarian calculation. Given the radical uncertainties of power politics, there probably is no practical way of making out that position—deciding when to fight and when not—on utilitarian principles. Think of what one would have to know to perform the calculations, of the experiments one would have to conduct, the wars one would have to fight—and leave unfought! In any case,

we mark off moral lines on the anticipation spectrum in an entirely different way.

It isn't really prudent to assume the malign intent of one's neighbors; it is merely cynical, an example of the worldly wisdom which no one lives by or could live by. We need to make judgments about our neighbor's intentions, and if such judgments are to be possible we must stipulate certain acts or sets of acts that will count as evidence of malignity. These stipulations are not arbitrary; they are generated, I think, when we reflect upon what it means *to be threatened*. Not merely *to be afraid*, though rational men and women may well respond fearfully to a genuine threat, and their subjective experience is not an unimportant part of the argument for anticipation. But we also need an objective standard, as Bacon's phrase "just fear" suggests. That standard must refer to the threatening acts of some neighboring state, for (leaving aside the dangers of natural disaster) I can only be threatened by someone who is threatening me, where "threaten" means what the dictionary says it means: "to hold out or offer (some injury) by way of a threat, to declare one's intention of inflicting injury."⁴ It is with some such notion as this that we must judge the wars fought for the sake of the balance of power. Consider, then, the Spanish Succession, regarded in the eighteenth century as a paradigmatic case for preventive war, and yet, I think, a negative example of threatening behavior.

The War of the Spanish Succession

Writing in the 1750s, the Swiss jurist Vattel suggested the following criteria for legitimate prevention: "Whenever a state has given signs of injustice, rapacity, pride, ambition, or of an imperious thirst of rule, it becomes a suspicious neighbor to be guarded against: and at a juncture when it is on the point of receiving a formidable augmentation of power, securities may be asked, and on its making any difficulty to give them, its designs may be prevented by force of arms."⁵ These criteria were formulated with explicit reference to the events of 1700 and 1701, when the King of Spain, last of his line, lay ill and dying. Long before those years, Louis XIV had given Europe evident signs of injustice, rapacity, pride, and so on. His foreign policy was openly expansionist and aggressive (which is not to say that justifications were not offered, ancient claims and titles uncovered, for every intended territorial acquisition). In 1700, he seemed about to receive a "formidable augmentation of power"—his grandson, the Duke of Anjou, was offered the Spanish

Anticipations

throne. With his usual arrogance, Louis refused to provide any assurances or guarantees to his fellow monarchs. Most importantly, he refused to bar Anjou from the French succession, thus holding open the possibility of a unified and powerful Franco-Spanish state. And then, an alliance of European powers, led by Great Britain, went to war against what they assumed was Louis' "design" to dominate Europe. Having drawn his criteria so closely to his case, however, Vattel concludes on a sobering note: "it has since appeared that the policy [of the Allies] was too suspicious." That is wisdom after the fact, of course, but still wisdom, and one would expect some effort to restate the criteria in its light.

The mere augmentation of power, it seems to me, cannot be a warrant for war or even the beginning of warrant, and for much the same reason that Bacon's commercial expansion ("embracing of trade") is also and even more obviously insufficient. For both of these suggest developments that may not be politically designed at all and hence cannot be taken as evidence of intent. As Vattel says, Anjou had been invited to his throne "by the [Spanish] nation, conformably to the will of its last sovereign"—that is, though there can be no question here of democratic decision-making, he had been invited for Spanish and not for French reasons. "Have not these two Realms," asked Jonathan Swift in a pamphlet opposing the British war, "their separate maxims of Policy . . . ?"⁶ Nor is Louis' refusal to make promises relating to some future time to be taken as evidence of design—only, perhaps, of hope. If Anjou's succession made immediately for a closer alliance between Spain and France, the appropriate answer would seem to have been a closer alliance between Britain and Austria. Then one could wait and judge anew the intentions of Louis.

But there is a deeper issue here. When we stipulate threatening acts, we are looking not only for indications of intent, but also for rights of response. To characterize certain acts as threats is to characterize them in a moral way, and in a way that makes a military response morally comprehensible. The utilitarian arguments for prevention don't do that, not because the wars they generate are too frequent, but because they are too common in another sense: too *ordinary*. Like Clausewitz's description of war as the continuation of policy by other means, they radically underestimate the importance of the shift from diplomacy to force. They don't recognize the problem that killing and being killed poses. Perhaps the recognition depends upon a certain way of valuing human life, which was not the way of eighteenth-century statesmen. (How

many of the British soldiers who shipped to the continent with Marlborough ever returned? Did anyone bother to count?) But the point is an important one anyway, for it suggests why people have come to feel uneasy about preventive war. We don't want to fight until we are threatened, because only then can we rightly fight. It is a question of moral security. That is why Vattel's concluding remark about the War of the Spanish Succession, and Burke's general argument about the fruitlessness of such wars, is so worrying. It is inevitable, of course, that political calculations will sometimes go wrong; so will moral choices; there is no such thing as perfect security. But there is a great difference, nonetheless, between killing and being killed by soldiers who can plausibly be described as the present instruments of an aggressive intention, and killing and being killed by soldiers who may or may not represent a distant danger to our country. In the first case, we confront an army recognizably hostile, ready for war, fixed in a posture of attack. In the second, the hostility is prospective and imaginary, and it will always be a charge against us that we have made war upon soldiers who were themselves engaged in entirely legitimate (non-threatening) activities. Hence the moral necessity of rejecting any attack that is merely preventive in character, that does not wait upon and respond to the willful acts of an adversary.

Pre-emptive Strikes

Now, what acts are to count, what acts do count as threats sufficiently serious to justify war? It is not possible to put together a list, because state action, like human action generally, takes on significance from its context. But there are some negative points worth making. The boastful ranting to which political leaders are often prone isn't in itself threatening; injury must be "offered" in some material sense as well. Nor does the kind of military preparation that is a feature of the classic arms race count as a threat, unless it violates some formally or tacitly agreed-upon limit. What the lawyers call "hostile acts short of war," even if these involve violence, are not too quickly to be taken as signs of an intent to make war; they may represent an essay in restraint, an offer to

Anticipations

quarrel within limits. Finally, provocations are not the same as threats. "Injury and provocation" are commonly linked by Scholastic writers as the two causes of just war. But the Schoolmen were too accepting of contemporary notions about the honor of states and, more importantly, of sovereigns.⁷ The moral significance of such ideas is dubious at best. Insults are not occasions for wars, any more than they are (these days) occasions for duels.

For the rest, military alliances, mobilizations, troop movements, border incursions, naval blockades—all these, with or without verbal menace, sometimes count and sometimes do not count as sufficient indications of hostile intent. But it is, at least, these sorts of actions with which we are concerned. We move along the anticipation spectrum in search, as it were, of enemies: not possible or potential enemies, not merely present ill-wishers, but states and nations that are already, to use a phrase I shall use again with reference to the distinction of combatants and noncombatants, *engaged in harming us* (and who have already harmed us, by their threats, even if they have not yet inflicted any physical injury). And this search, though it carries us beyond preventive war, clearly brings us up short of Webster's pre-emption. The line between legitimate and illegitimate first strikes is not going to be drawn at the point of imminent attack but at the point of sufficient threat. That phrase is necessarily vague. I mean it to cover three things: a manifest intent to injure, a degree of active preparation that makes that intent a positive danger, and a general situation in which waiting, or doing anything other than fighting, greatly magnifies the risk. The argument may be made more clear if I compare these criteria to Vattel's. Instead of previous signs of rapacity and ambition, current and particular signs are required; instead of an "augmentation of power," actual preparation for war; instead of the refusal of future securities, the intensification of present dangers. Preventive war looks to the past and future, Webster's reflex action to the immediate moment, while the idea of being under a threat focuses on what we had best call simply *the present*. I cannot specify a time span; it is a span within which one can still make choices, and within which it is possible to feel straitened.⁸

What such a time is like is best revealed concretely. We can study it in the three weeks that preceded the Six Day War of 1967. Here is a case as crucial for an understanding of anticipation in the twentieth century as the War of the Spanish Succession was for the eighteenth, and one suggesting that the shift from

dynastic to national politics, the costs of which have so often been stressed, has also brought some moral gains. For nations, especially democratic nations, are less likely to fight preventive wars than dynasties are.

The Six Day War

Actual fighting between Israel and Egypt began on June 5, 1967, with an Israeli first strike. In the early hours of the war, the Israelis did not acknowledge that they had sought the advantages of surprise, but the deception was not maintained. In fact, they believed themselves justified in attacking first by the dramatic events of the previous weeks. So we must focus on those events and their moral significance. It would be possible, of course, to look further back still, to the whole course of the Arab-Jewish conflict in the Middle East. Wars undoubtedly have long political and moral pre-histories. But anticipation needs to be understood within a narrower frame. The Egyptians believed that the founding of Israel in 1948 had been unjust, that the state had no rightful existence, and hence that it could be attacked at any time. It follows from this that Israel had no right of anticipation since it had no right of self-defense. But self-defense seems the primary and indisputable right of any political community, merely because it is *there* and whatever the circumstances under which it achieved statehood.* Perhaps this is why the Egyptians fell back in their more formal arguments upon the claim that a state of war already existed between Egypt and Israel and that this condition justified the military moves they undertook in May 1967.⁹ But the same condition would justify Israel's first strike. It is best to assume, I think, that the existing cease-fire between the two countries was at least a near-peace and that the outbreak of the war requires a moral explanation—the burden falling on the Israelis, who began the fighting.

The crisis apparently had its origins in reports, circulated by Soviet officials in mid-May, that Israel was massing its forces on the Syrian border. The falsity of these reports was almost immediately vouched for by United Nations observers on the scene. Nevertheless, on May 14, the Egyptian government put its armed forces on "maximum alert" and began a major buildup of its troops

* The only limitation on this right has to do with internal, not external legitimacy: a state (or government) established against the will of its own people, ruling violently, may well forfeit its right to defend itself even against a foreign invasion. I will take up some of the issues raised by this possibility in the next chapter.

Anticipations

in the Sinai. Four days later, Egypt expelled the United Nations Emergency Force from the Sinai and the Gaza Strip; its withdrawal began immediately, though I do not think that its title had been intended to suggest that it would depart so quickly in event of emergency. The Egyptian military buildup continued, and on May 22, President Nasser announced that the Straits of Tiran would henceforth be closed to Israeli shipping.

In the aftermath of the Suez War of 1956, the Straits had been recognized by the world community as an international waterway. That meant that their closing would constitute a *casus belli*, and the Israelis had stated at that time, and on many occasions since, that they would so regard it. The war might then be dated from May 22, and the Israeli attack of June 5 described simply as its first military incident: wars often begin before the fighting of them does. But the fact is that after May 22, the Israeli cabinet was still debating whether or not to go to war. And, in any case, the actual initiation of violence is a crucial moral event. If it can sometimes be justified by reference to previous events, it nevertheless has to be justified. In a major speech on May 29, Nasser made that justification much easier by announcing that if war came the Egyptian goal would be nothing less than the destruction of Israel. On May 30, King Hussein of Jordan flew to Cairo to sign a treaty placing the Jordanian army under Egyptian command in event of war, thus associating himself with the Egyptian purpose. Syria already had agreed to such an arrangement, and several days later Iraq joined the alliance. The Israelis struck on the day after the Iraqi announcement.

For all the excitement and fear that their actions generated, it is unlikely that the Egyptians intended to begin the war themselves. After the fighting was over, Israel published documents, captured in its course, that included plans for an invasion of the Negev; but these were probably plans for a counter-attack, once an Israeli offensive had spent itself in the Sinai, or for a first strike at some later time. Nasser would almost certainly have regarded it as a great victory if he could have closed the Straits and maintained his army on Israel's borders without war. Indeed, it would have been a great victory, not only because of the economic blockade it would have established, but also because of the strain it would have placed on the Israeli defense system. "There was a basic asymmetry in the structure of forces: the Egyptians could deploy . . . their large army of long-term regulars on the Israeli border and keep it there indefinitely; the Israelis could only counter their

deployment by mobilizing reserve formations, and reservists could not be kept in uniform for very long . . . Egypt could therefore stay on the defensive while Israel would have to attack unless the crisis was defused diplomatically."¹⁰ *Would have to attack*: the necessity cannot be called instant and overwhelming; nor, however, would an Israeli decision to allow Nasser his victory have meant nothing more than a shift in the balance of power posing possible dangers at some future time. It would have opened Israel to attack at any time. It would have represented a drastic erosion of Israeli security such as only a determined enemy would hope to bring about.

The initial Israeli response was not similarly determined but, for domestic political reasons having to do in part with the democratic character of the state, hesitant and confused. Israel's leaders sought a political resolution of the crisis—the opening of the Straits and a demobilization of forces on both sides—which they did not have the political strength or support to effect. A flurry of diplomatic activity ensued, serving only to reveal what might have been predicted in advance: the unwillingness of the Western powers to pressure or coerce the Egyptians. One always wants to see diplomacy tried before the resort to war, so that we are sure that war is the last resort. But it would be difficult in this case to make an argument for its necessity. Day by day, diplomatic efforts seemed only to intensify Israel's isolation.

Meanwhile, "an intense fear spread in the country." The extraordinary Israeli triumph, once fighting began, makes it difficult to recall the preceding weeks of anxiety. Egypt was in the grip of a war fever, familiar enough from European history, a celebration in advance of expected victories. The Israeli mood was very different, suggesting what it means to live under threat: rumors of coming disasters were endlessly repeated; frightened men and women raided food shops, buying up their entire stock, despite government announcements that there were ample reserves; thousands of graves were dug in the military cemeteries; Israel's political and military leaders lived on the edge of nervous exhaustion.¹¹ I have already argued that fear by itself establishes no right of anticipation. But Israeli anxiety during those weeks seems an almost classical example of "just fear"—first, because Israel really was in danger (as foreign observers readily agreed), and second, because it was Nasser's intention to put it in danger. He said this often enough, but it is also and more importantly true that his military moves served no other, more limited goal.

Anticipations

The Israeli first strike is, I think, a clear case of legitimate anticipation. To say that, however, is to suggest a major revision of the legalist paradigm. For it means that aggression can be made out not only in the absence of a military attack or invasion but in the (probable) absence of any immediate intention to launch such an attack or invasion. The general formula must go something like this: states may use military force in the face of threats of war, whenever the failure to do so would seriously risk their territorial integrity or political independence. Under such circumstances it can fairly be said that they have been forced to fight and that they are the victims of aggression. Since there are no police upon whom they can call, the moment at which states are forced to fight probably comes sooner than it would for individuals in a settled domestic society. But if we imagine an unstable society, like the "wild west" of American fiction, the analogy can be restated: a state under threat is like an individual hunted by an enemy who has announced his intention of killing or injuring him. Surely such a person may surprise his hunter, if he is able to do so.

The formula is permissive, but it implies restrictions that can usefully be unpacked only with reference to particular cases. It is obvious, for example, that measures short of war are preferable to war itself whenever they hold out the hope of similar or nearly similar effectiveness. But what those measures might be, or how long they must be tried, cannot be a matter of *a priori* stipulation. In the case of the Six Day War, the "asymmetry in the structure of forces" set a time limit on diplomatic efforts that would have no relevance to conflicts involving other sorts of states and armies. A general rule containing words like "seriously" opens a broad path for human judgment—which it is, no doubt, the purpose of the legalist paradigm to narrow or block altogether. But it is a fact of our moral life that political leaders make such judgments, and that once they are made the rest of us do not uniformly condemn them. Rather, we weigh and evaluate their actions on the basis of criteria like those I have tried to describe. When we do that we are acknowledging that there are threats with which no nation can be expected to live. And that acknowledgment is an important part of our understanding of aggression.